Awadhesh Kumar Singh Bhadoria And 2 ... vs State Of U.P. And Another on 2 August, 2016

Author: Naheed Ara Moonis

Bench: Naheed Ara Moonis

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 47

Case :- APPLICATION U/S 482 No. - 21725 of 2016

Applicant :- Awadhesh Kumar Singh Bhadoria And 2 Others

Opposite Party :- State Of U.P. And Another

Counsel for Applicant :- Suresh C. Dwivedi,M.C. Chaturvedi

Counsel for Opposite Party :- G.A.

Hon'ble Naheed Ara Moonis,J.
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Heard learned counsel for the applicants and also learned Additional Government Advocate on behalf of the State and have taken through the record.

The instant petition has been filed with a prayer to quash the entire proceeding of Complaint Case No.887 of 2015 (Deepika Bhadoria Vs. Rakesh Bhadoria and others), under Section 406 I.P.C. and 6 Dowry Prohibition Act, P.S. Kotwali Sadar, district Fatehpur as well as impugned summoning order dated 6.5.2016 passed by Additional Chief Judicial Magistrate, Court No.12, Fatehpur.

It is submitted by the learned counsel for the applicants that the applicant no. 3 is the husband and other applicants are parents in law of the opposite party no.2. The marriage was solemnized on 5.6.2002 according to Hindu customs and rites. The opposite party no.2 lodged the F.I.R. against the applicants on 18.8.2014 with the allegations of demand of dowry and that on account of

non-fulfilment of demand of dowry she was ousted from her matrimonial house. Thereafter filed complaint case against the applicants. The dispute is the emanation of the matrimonial bickering. In case the matter is referred to the mediation centre there are chances of amicable settlement between the parties and there is every likelihood that both the parties will resolve their differences. The applicants are ready to deposit requisite amount towards expenses.

Having considered the arguments advanced across the bar, this court owes a duty to the society to repair the frayed relations between the parties so that the wounded relation may be healed into a healthy rapprochement. The matter in hand also appears to be one of those cases in which reconciliation should be tried between the disputing parties.

While referring the matter to Mediation Centre with the consent of the counsel for the applicants, it is directed that the applicants shall deposit a sum of Rs. 25,000/- within two weeks with the Mediation Centre by way of Bank draft drawn in favour of Mediation Centre, High Court, Allahabad, out of which a sum of Rs. 23,000/- shall be payable to the respondent no. 2, victim and the remaining amount shall be kept for being utilised by the Mediation Centre. The amount aforesaid, it is further directed, shall be paid over to the respondent no. 2 on her appearing before the Mediation Centre on the date fixed. The amount aforesaid, it may be clarified, are meant to meet expenses to be incurred for attending mediation sessions at Allahabad for the respondent no.2 and the person escorting her.

The office upon deposit of the Bank draft shall issue notice within one week to the respondent no.2 i.e the wife calling upon her to appear at the Mediation Centre at Allahabad High Court on a date to be indicated in the said notice stating therein that the Bank draft deposited by the applicants shall be delivered at the Mediation Centre on the date fixed. The said notice shall be served upon respondent no.2 through C.J.M concerned. It needs hardly be said that both the parties shall appear either on the date fixed or on a future date as may be agreed before the Mediation Centre for reconciliation.

The Centre shall submit a report within one month from the date of parties appearing before it for reconciliation. The case shall be listed in the week commencing 17.10.2016 along with report of Mediation Centre.

Till next date of listing no coercive steps shall be taken against the applicants in Complaint Case No.887 of 2015 (Deepika Bhadoria Vs. Rakesh Bhadoria and others), under Section 406 I.P.C. and 6 Dowry Prohibition Act, P.S. Kotwali Sadar, district Fatehpur.

It is made clear that in case, there occurs default by the applicants either in depositing the amount or in appearing before the Mediation Centre on the date or dates fixed, the interim order shall automatically cease to be operative and the Mediation Centre shall immediately communicate with the office which in turn shall list the case within a week before the Bench concerned for passing appropriate order in the matter.

It is further clarified that the case will not be treated as tied up to this Bench and shall be listed before the appropriate Bench.

Copy of this order will not be issued unless steps are taken.

Order Date :- 2.8.2016 RU